

The RPwD Act 2016

Easy Read Guide · All 102 Sections

Your rights, in plain words — with the law still attached.

A complete reference for persons with intellectual and learning disabilities.

Section titles verified against the official RPwD Act 2016 (Ministry of Law and Justice).



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About this guide

- This guide explains all 102 sections of India's Rights of Persons with Disabilities Act 2016.
- It is written in plain words for people who find legal language hard.
- Every page keeps the official Section number and title from the Act. The plain words sit below.
- Some sections give you rights you can claim. Others explain how the system works — those say “For reference” in the Use this when box.
- Each chapter has its own colour, so you can tell at a glance which chapter you are in.
- Section titles in this guide were verified against the official Act text from the Ministry of Law and Justice.
- This guide is not legal advice. For court matters, please ask a lawyer or your State Commissioner.

WHY THE LEGAL HEADINGS STAY

When you raise a complaint, citing the Section number gives your case real power. We never strip it out.

How to use this guide

Every Section page in this guide has the same five parts:

1

Chapter and Section number

Tells you exactly where in the Act you are.

2

Official Section title

The exact name from the Act. Use this in complaints.

3

Picture

A simple drawing to help you remember the idea.

4

Plain words

The same idea in easy English.

5

Use this when...

Real-life examples of when this section helps you.

Map of your rights

All 17 chapters and 102 sections — each chapter has its own colour:

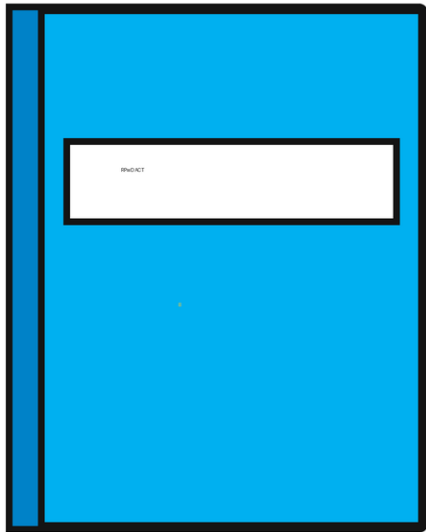
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Plus: How to file a complaint · Who can help you · Your rights in one page

CHAPTER I

Preliminary

The basics: who is covered and what the words mean



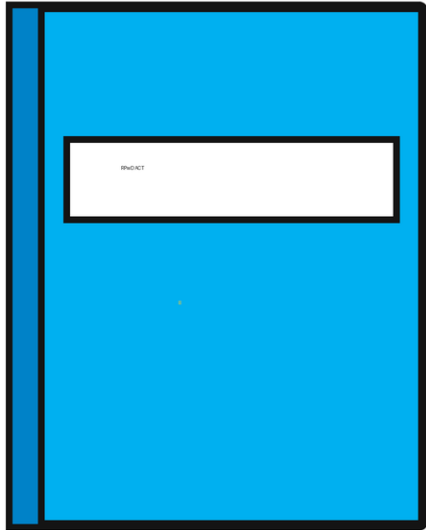
Section 1 — Short title and commencement

This section gives the Act its name and tells when it started. The Act began on 19 April 2017 and applies to all of India.

★ USE THIS WHEN

(For reference. This section is the Act's name plate.)

Section 2 — Definitions



The Act lists 21 disabilities. If you have one of them, you are covered. If your disability is 40% or more, you are called a person with benchmark disability — you get extra rights.

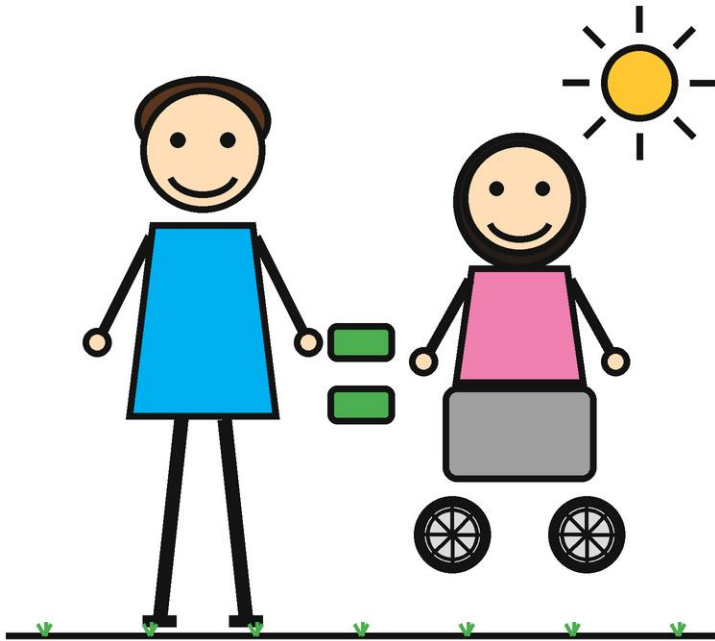
★ USE THIS WHEN

You are not sure if the Act covers you, or whether you have a benchmark disability. Look at the list of 21 disabilities and the 40% rule.

CHAPTER II

Rights and Entitlements

What you can claim, and what is wrong

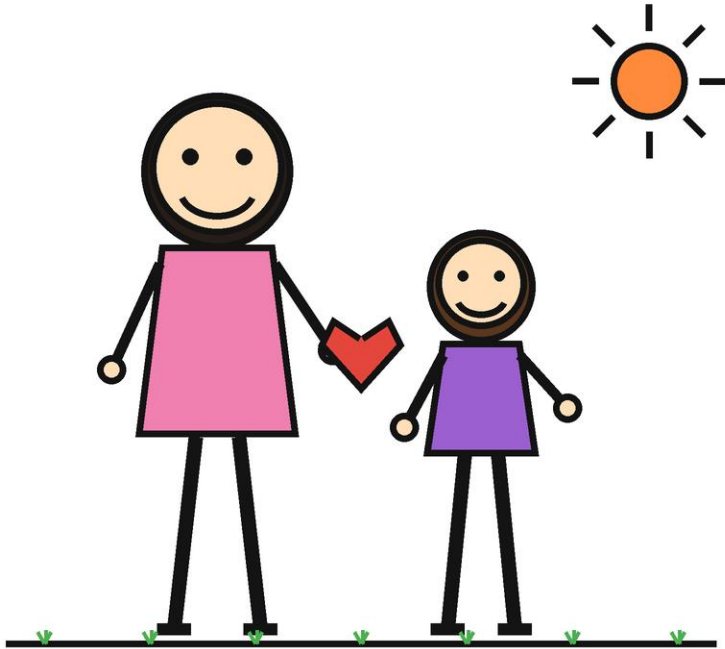


Section 3 — Equality and non-discrimination

You have the right to be treated equally. No one can treat you badly because you have a disability.

★ USE THIS WHEN

Someone refused you a service, a job, or a place because of your disability. Cite Section 3 in your complaint.

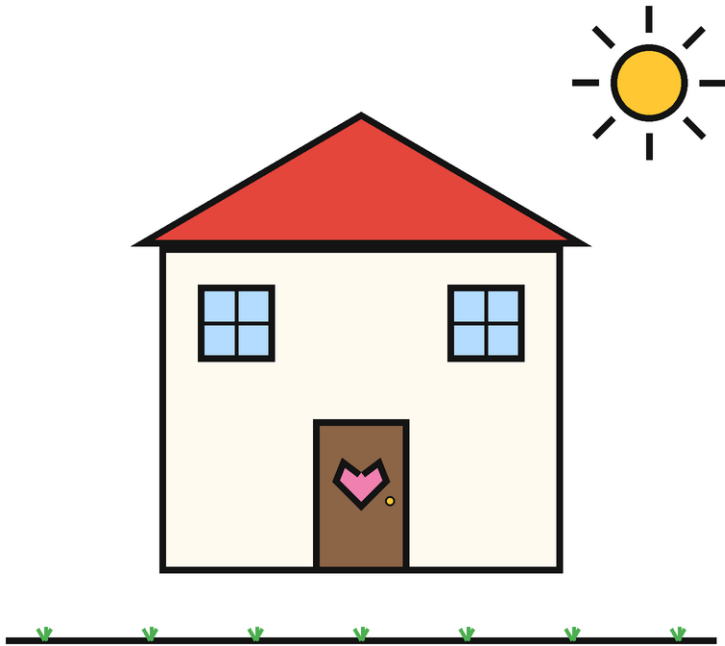


Section 4 — Women and children with disabilities

Women and children with disabilities have the same rights as everyone else. The government must protect them from extra harm.

★ USE THIS WHEN

A girl or woman is denied school, work, or safety because of her disability. Or a child is being kept out of school.



Section 5 — Community life

You have the right to live in your own home and your own community. No one can force you into an institution against your will.

★ USE THIS WHEN

Someone is forcing a person with a disability to live in a hostel or institution they do not want to live in.



Section 6 — Protection from cruelty and inhuman treatment

No one can hurt you or treat you in a cruel way. The government must keep you safe.

★ USE THIS WHEN

A person with a disability is being treated cruelly at home, in school, in a hospital, or in care.

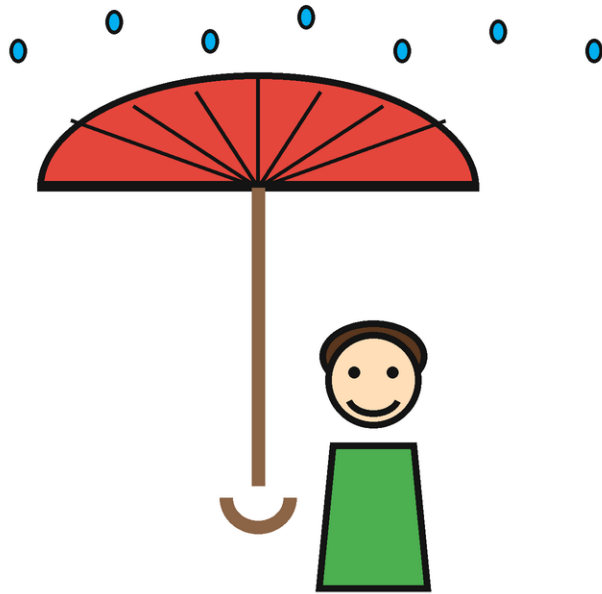


Section 7 — Protection from abuse, violence and exploitation

No one can hit you, hurt you, or use you for their gain. You can tell the police. They must help. You can also ask a magistrate for protection.

★ USE THIS WHEN

Someone is hurting, abusing, or exploiting a person with a disability.

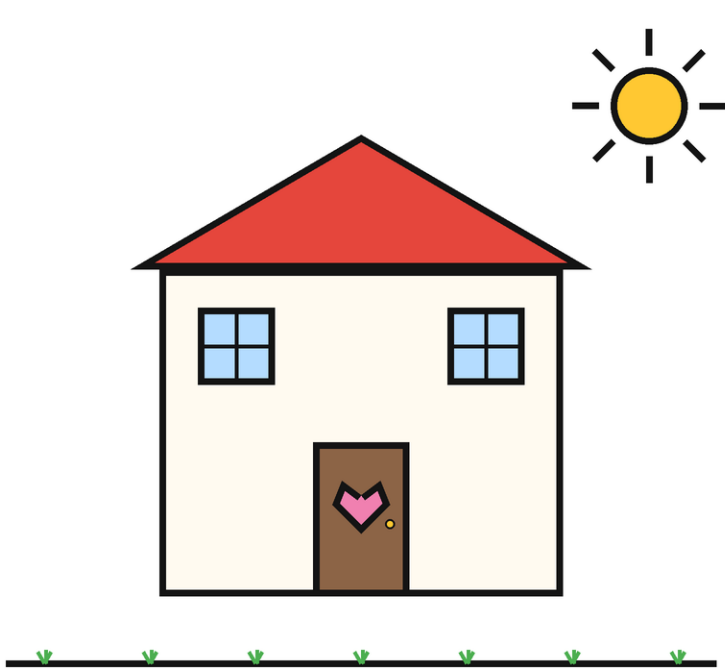


Section 8 — Protection and safety

The government must keep persons with disabilities safe in disasters, fires, floods, armed conflict, and other emergencies.

★ USE THIS WHEN

A relief camp, shelter, or evacuation plan does not include or is not safe for persons with disabilities.



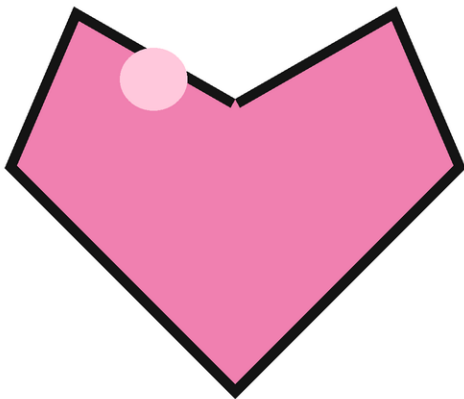
Section 9 — Home and family

Persons with disabilities have the right to a home and a family. No child can be taken from a parent only because the parent has a disability.

★ USE THIS WHEN

A child welfare worker tries to take your child away because of your disability.

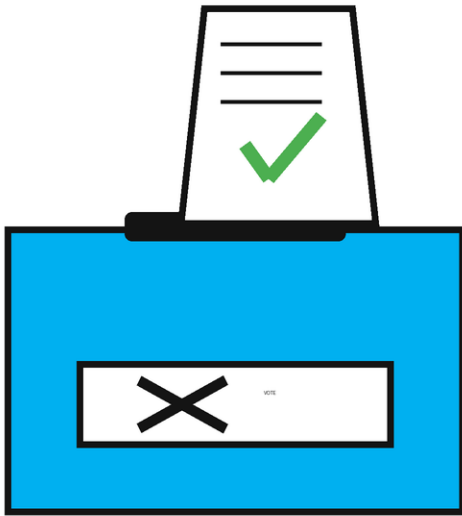
Section 10 — Reproductive rights



Persons with disabilities have the right to decide about marriage and children. No one can force you to have an operation that stops you from having children.

★ USE THIS WHEN

A doctor, family member, or institution wants to sterilise a person with a disability without their full free consent.

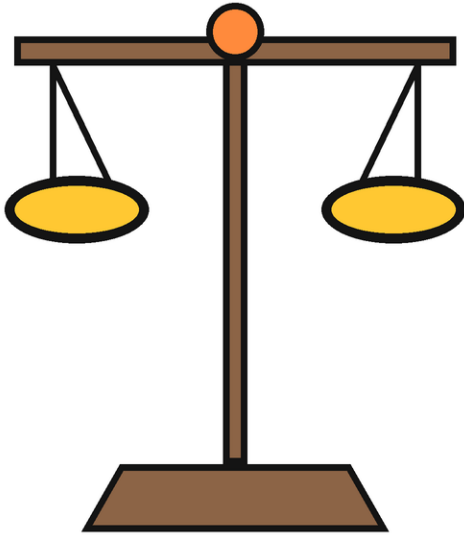


Section 11 — Accessibility in voting

You have the right to vote in private. Polling stations must have ramps, easy ballots, and help if you need it.

★ USE THIS WHEN

A polling station has no ramp, no Braille ballot, or no help for voters with disabilities.



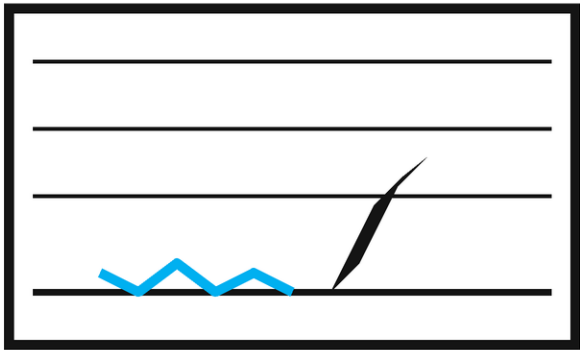
Section 12 — Access to justice

You have the right to go to court. Courts must let you take part. They must give you a sign language interpreter or a support person if you need one.

★ USE THIS WHEN

A court, police station, or tribunal does not let you take part because of your disability.

Section 13 — Legal capacity



You can make your own decisions. You can own things. You can run a bank account. No one can take that away because of your disability.

★ USE THIS WHEN

Someone says you cannot sign a document, open a bank account, or own property because of your disability.

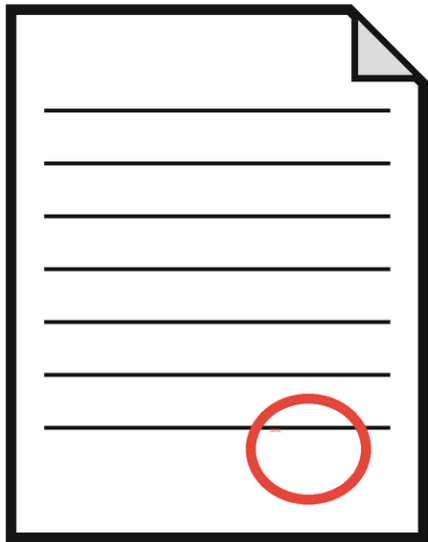


Section 14 — Provision for guardianship

Guardianship can only be a last step. It must be limited and end when you can decide for yourself again. You always have the right to support to make your own choices.

★ USE THIS WHEN

Someone wants to put a person with a disability under full guardianship without trying support first.



Section 15 — Designation of authorities to support

The government must name offices that help persons with disabilities make their own decisions.

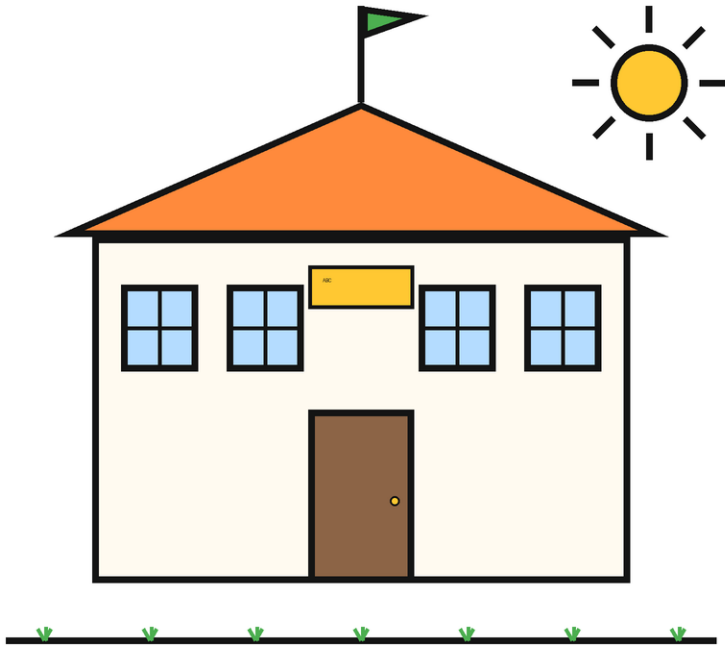
★ USE THIS WHEN

(For reference. This section sets up the support system for decision-making.)

CHAPTER III

Education

Schools, colleges, and learning

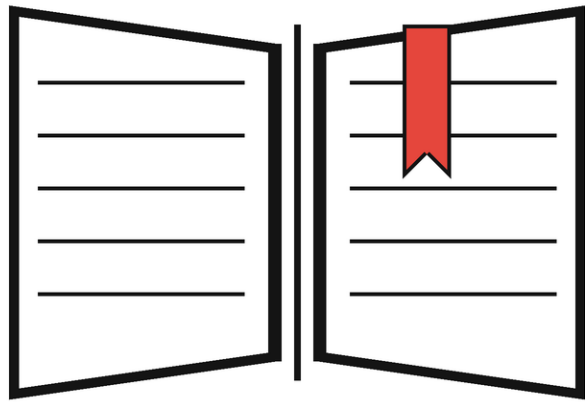


Section 16 — Duty of educational institutions

All schools must welcome children with disabilities. Schools must give the help each child needs to learn.

★ USE THIS WHEN

A school refused to take a child because of disability, or refuses to give support.

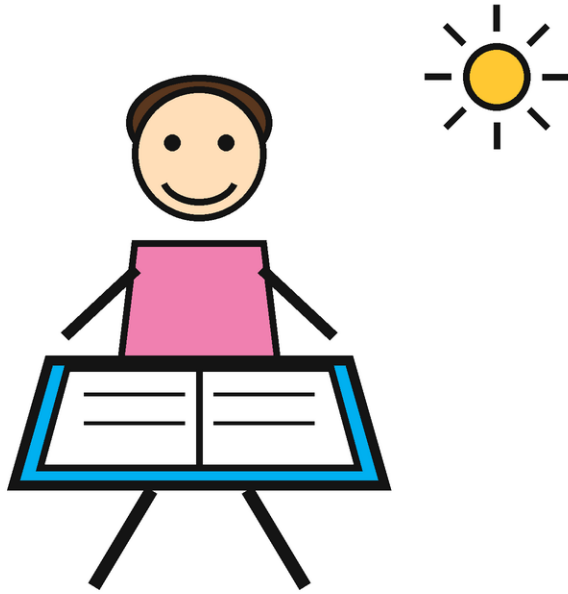


Section 17 — Specific measures to promote and facilitate inclusive education

The government must train teachers, make books in accessible formats, and make schools easy to enter and use.

★ USE THIS WHEN

A school does not have ramps, accessible books, sign language support, or trained teachers.



Section 18 — Adult education

The government must run adult education programmes that include adults with disabilities.

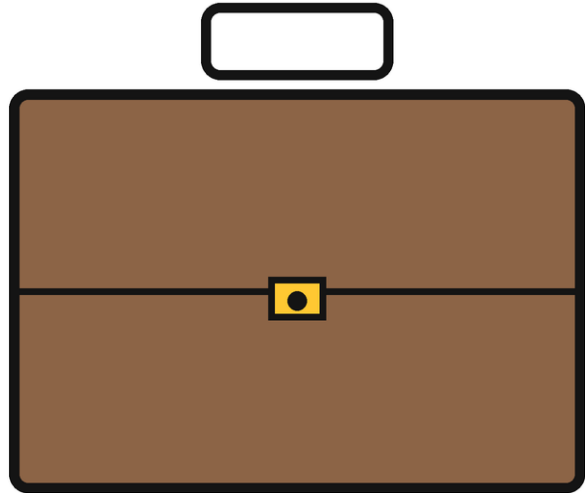
★ USE THIS WHEN

An adult literacy or skills programme has no place for persons with disabilities.

CHAPTER IV

Skill Development and Employment

Training, jobs, and fair treatment at work

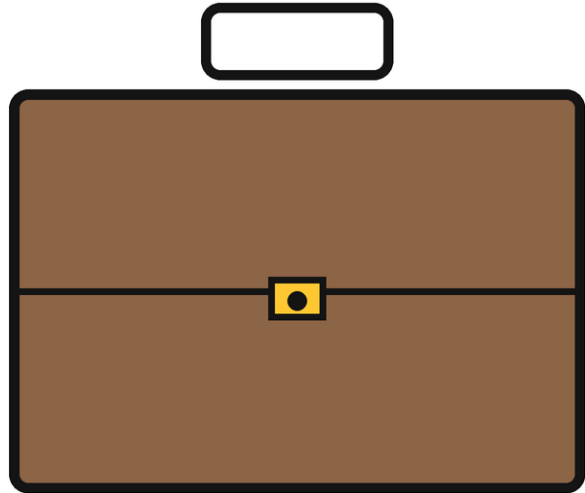


Section 19 — Vocational training and self-employment

The government must run job training programmes and help persons with disabilities start their own work.

★ USE THIS WHEN

A skill training programme refused you, or did not have an accessible course.

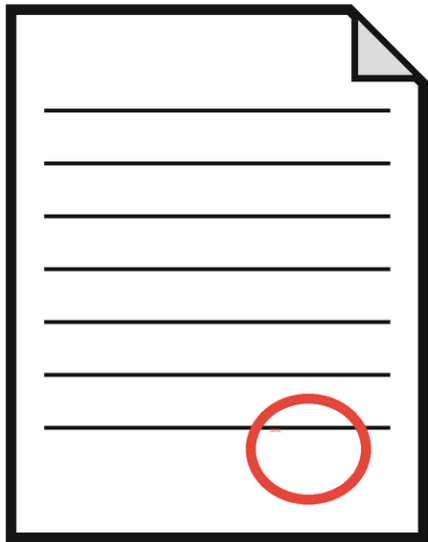


Section 20 — Non-discrimination in employment

A government job cannot say no to you because you have a disability. You must be treated fairly at work.

★ USE THIS WHEN

You did not get a job, a promotion, or a fair review because of your disability.

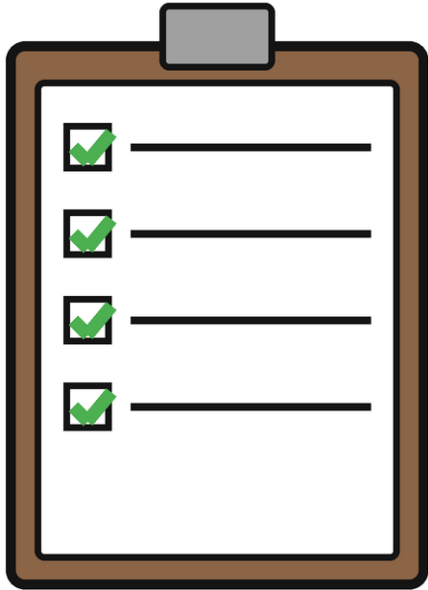


Section 21 — Equal opportunity policy

Every workplace with 20 or more workers must write down how they will treat workers with disabilities fairly. They must show this paper if you ask.

★ USE THIS WHEN

You want to know your workplace's rules for disability support. Ask to see the equal opportunity policy.

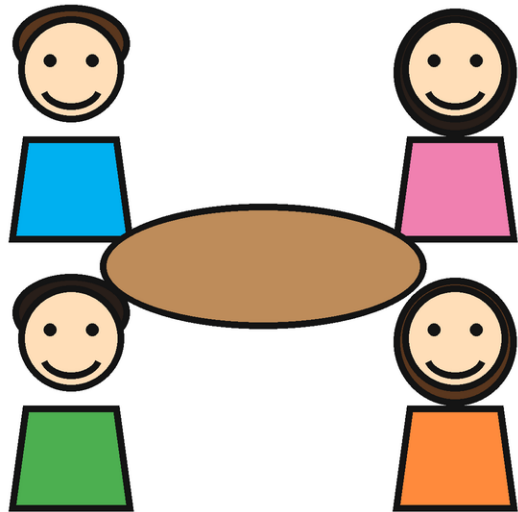


Section 22 — Maintenance of records

Every workplace must keep records of how many workers with disabilities they have, and what support each one needs.

★ USE THIS WHEN

You ask your workplace for these records and they refuse, or they say no records are kept.



Section 23 — Appointment of Grievance Redressal Officer

Every government workplace must name an officer to handle complaints from workers with disabilities.

★ USE THIS WHEN

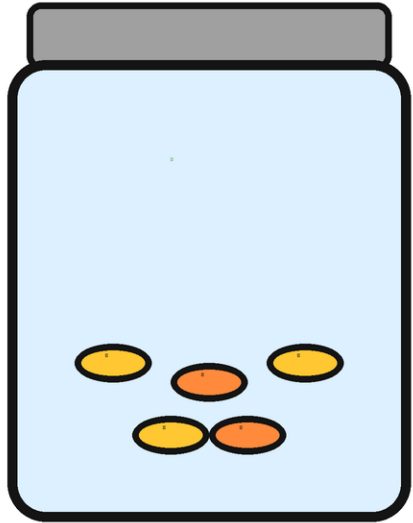
Your workplace has no Grievance Redressal Officer, or the officer is not doing the job.

CHAPTER V

Social Security, Health, Rehabilitation and Recreation

Help to live with dignity, stay well, and take part

Section 24 — Social security



The government must help you with food, clothes, a home, and other support if you need it to live.

★ USE THIS WHEN

You need a disability pension, ration card, or housing scheme but were turned away.

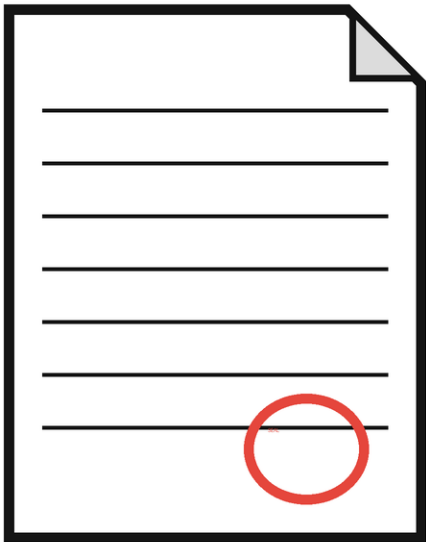


Section 25 — Healthcare

You should get free healthcare close to where you live. Healthcare must work for people with disabilities too.

★ USE THIS WHEN

A government hospital or clinic refused you, charged you, or had no accessible service.



Section 26 — Insurance schemes

The government must run insurance schemes for persons with disabilities.

★ USE THIS WHEN

An insurance company refused you because of your disability, or you cannot find any disability insurance.

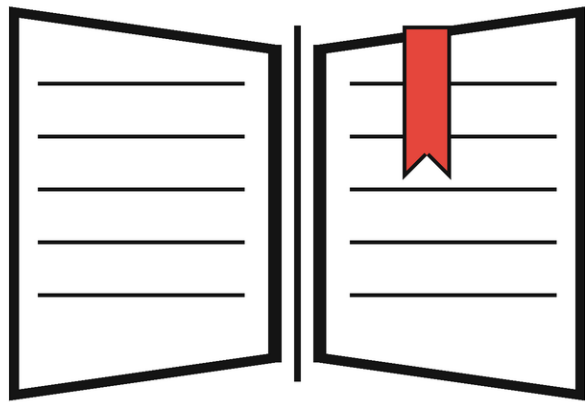


Section 27 — Rehabilitation

The government must run rehabilitation programmes covering health, mind, social skills, and work.

★ USE THIS WHEN

A government rehab centre is not available, is too far, or refused to take you.



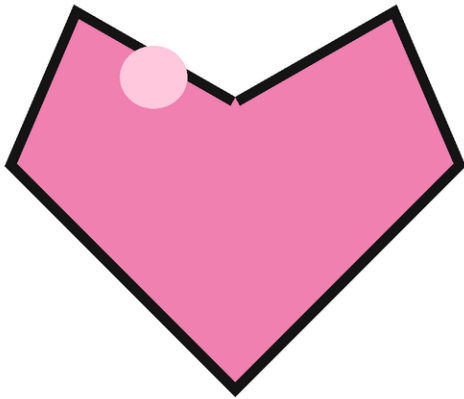
Section 28 — Research and development

The government must support research on disability, including new tools and treatments.

★ USE THIS WHEN

(For reference. This section funds research on assistive technology and disability services.)

Section 29 — Culture and recreation

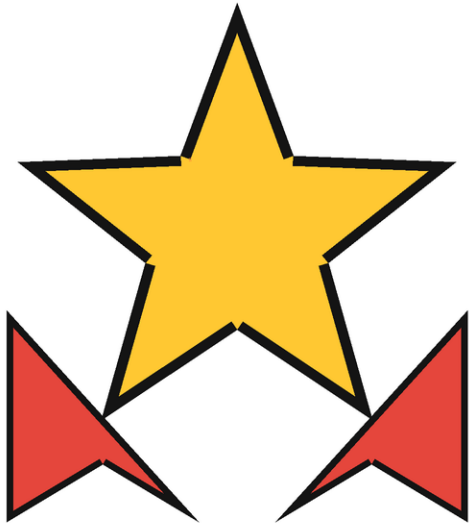


Persons with disabilities have the right to take part in art, music, films, libraries, and leisure.

★ USE THIS WHEN

A museum, cinema, library, or cultural event refused you or had no accessible entry.

Section 30 — Sporting activities



The government must support sports for persons with disabilities.

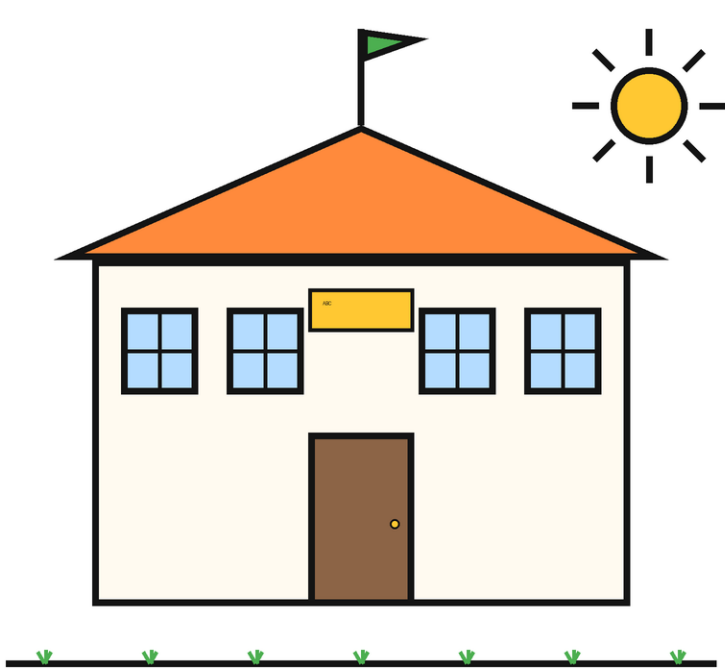
★ USE THIS WHEN

A sports facility, training programme, or competition refused to include persons with disabilities.

CHAPTER VI

Special Provisions for Persons with Benchmark Disabilities

Extra rights when your disability is 40% or more

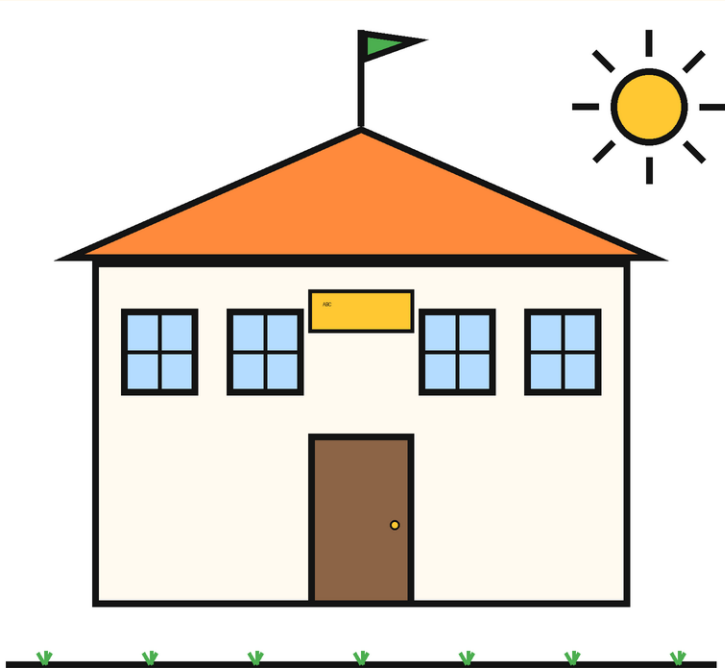


Section 31 — Free education for children with benchmark disabilities

Children with benchmark disabilities aged 6 to 18 have the right to free education in any government or government-aided school.

★ USE THIS WHEN

A government school asked a child with benchmark disability to pay fees, or refused to admit them.

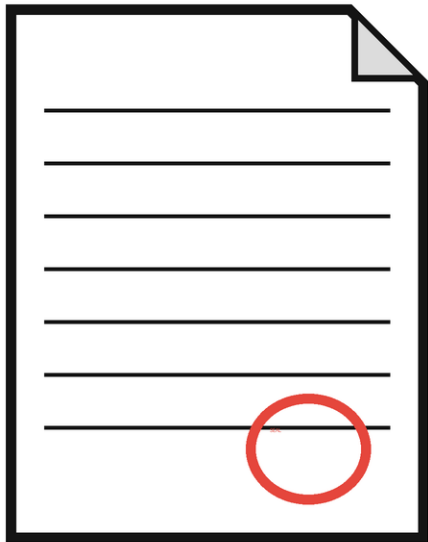


Section 32 — Reservation in higher educational institutions

Government colleges and universities must keep 5 seats out of every 100 for students with benchmark disabilities.

★ USE THIS WHEN

A college denied you a reserved seat or did not have a 5% disability quota in admissions.



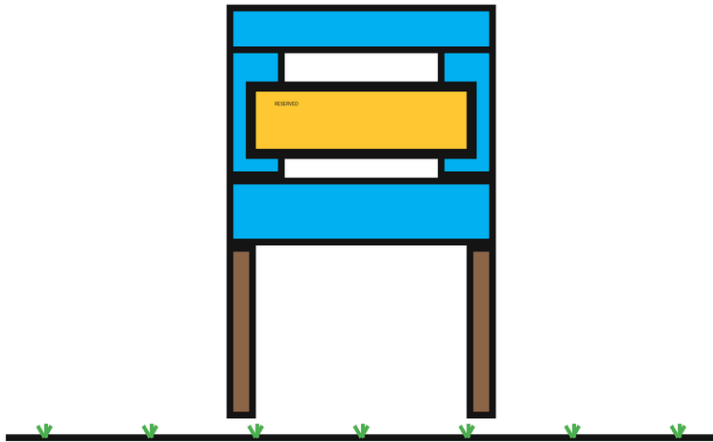
Section 33 — Identification of posts for reservation

The government must list out which jobs are open to persons with benchmark disabilities under the reservation.

★ USE THIS WHEN

(For reference. This section is the basis for the 4% reservation in Section 34.)

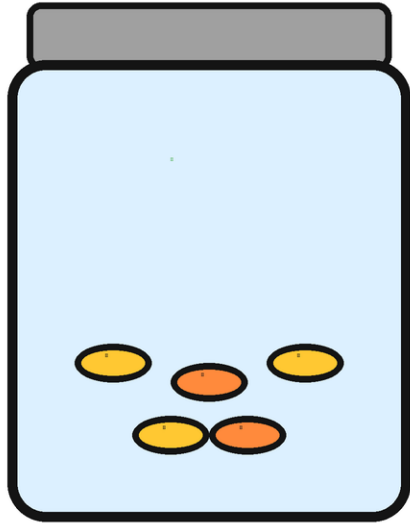
Section 34 — Reservation



The government must keep 4 jobs out of every 100 for persons with benchmark disabilities. The 4% is split across categories of disability.

★ USE THIS WHEN

A government office did not follow the 4% job quota, or did not let you apply under the disability category.

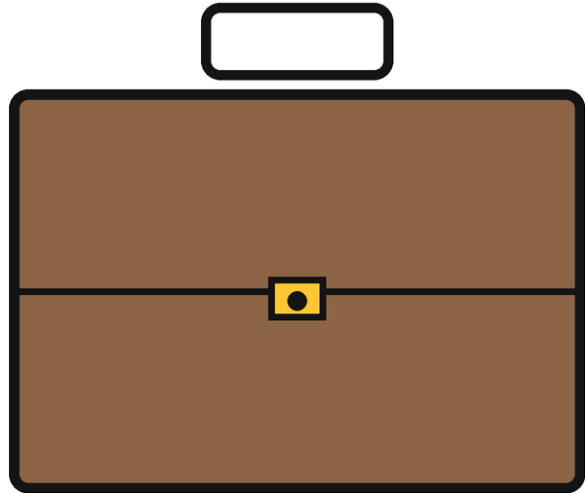


Section 35 — Incentives to employers in private sector

The government can give private companies incentives like grants and tax breaks if they hire workers with disabilities.

★ USE THIS WHEN

(For reference. This section encourages private sector hiring of persons with disabilities.)

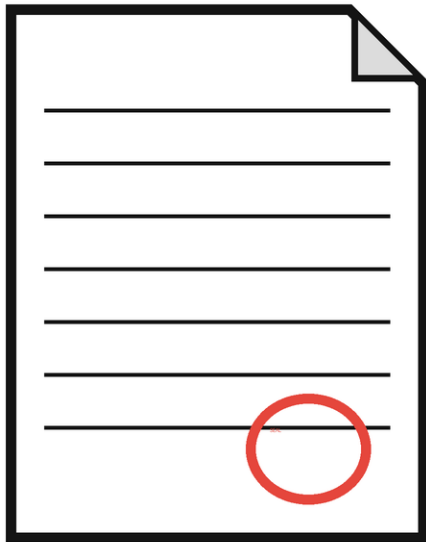


Section 36 — Special employment exchange

The government must set up special job centres that help persons with disabilities find work.

★ USE THIS WHEN

You cannot find a special employment exchange in your district, or the one you found is not helping you.



Section 37 — Special schemes and development programmes

The government must run schemes that help persons with benchmark disabilities live, study, and work.

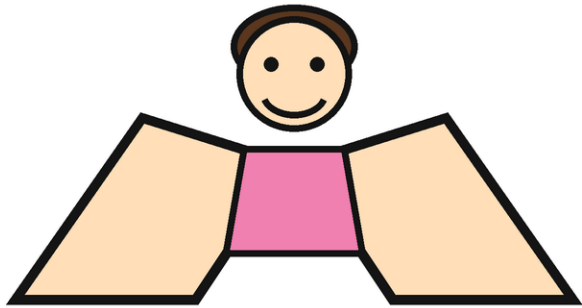
★ USE THIS WHEN

(For reference. This section is the basis for many disability welfare schemes.)

CHAPTER VII

Persons with Disabilities with High Support Needs

Extra support for those who need it most



Section 38 — Special provisions for persons with disabilities with high support

Persons with disabilities who need a lot of support get extra help. They have the right to ask for support, and the help must be reviewed often.

★ USE THIS WHEN

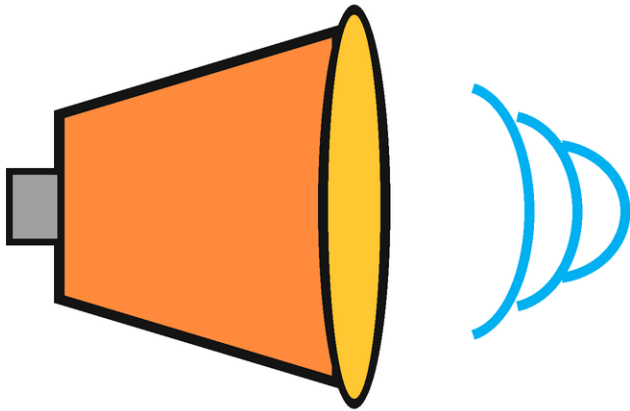
A person needs daily personal support but is not getting it from any government scheme.

CHAPTER VIII

Duties and Responsibilities of Appropriate Governments

Awareness, accessibility, and what governments must build

Section 39 — Awareness campaigns



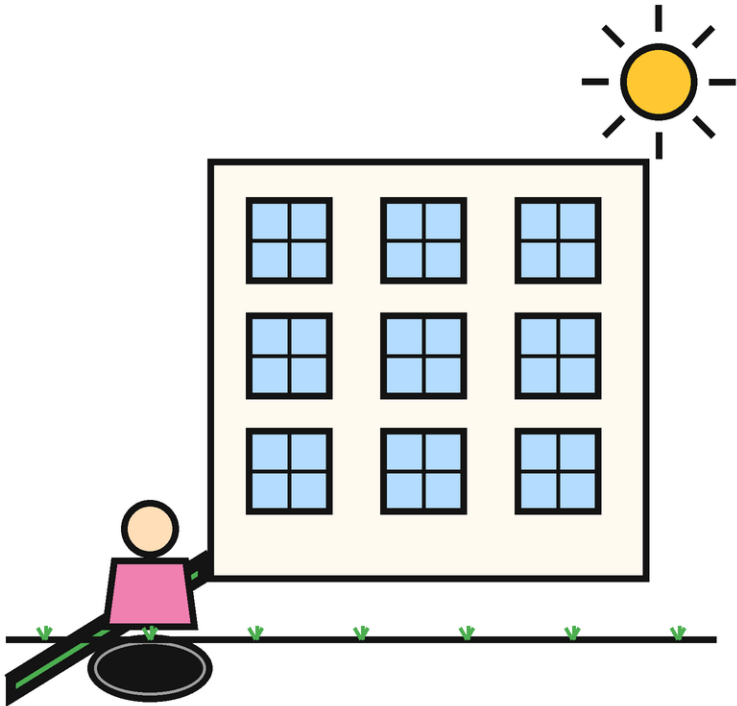
The government must run programmes to teach people about disability rights and accessibility.

★ USE THIS WHEN

(For reference. This section requires public awareness of the Act.)

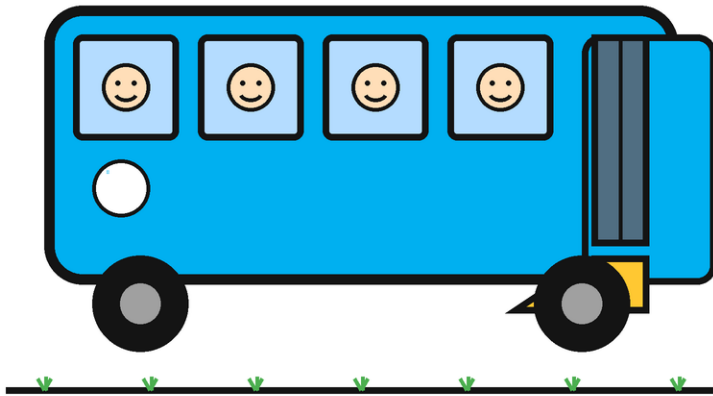
Section 40 — Accessibility

Buildings, places, transport, and information must be made easy to use for everyone, including persons with disabilities.



★ USE THIS WHEN

A public building has no ramp, no lift, no accessible toilet, or no clear signs.

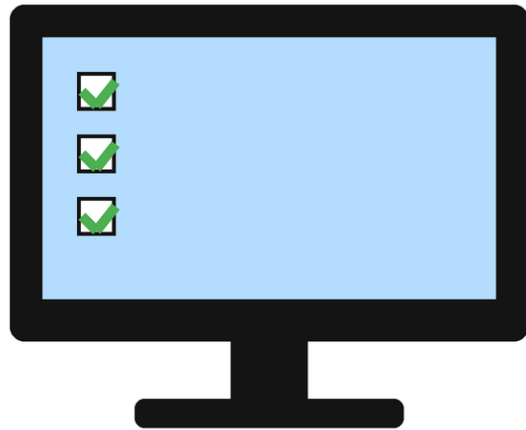


Section 41 — Access to transport

Buses, trains, stations, and airports must have ramps, accessible signs, and trained staff to help.

★ USE THIS WHEN

A bus, train, or station did not let you board, had no ramp or lift, or had no accessible toilet.



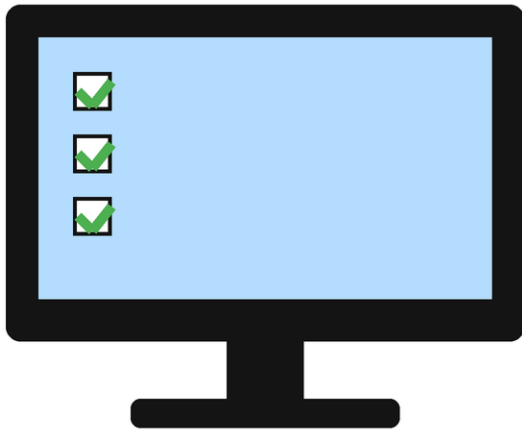
Section 42 — Access to information and communication technology

Websites, apps, TV, and phones must work for people with disabilities. Books, forms, and notices must come in accessible formats too.

★ USE THIS WHEN

A government website, app, TV news, or printed form is not accessible to you.

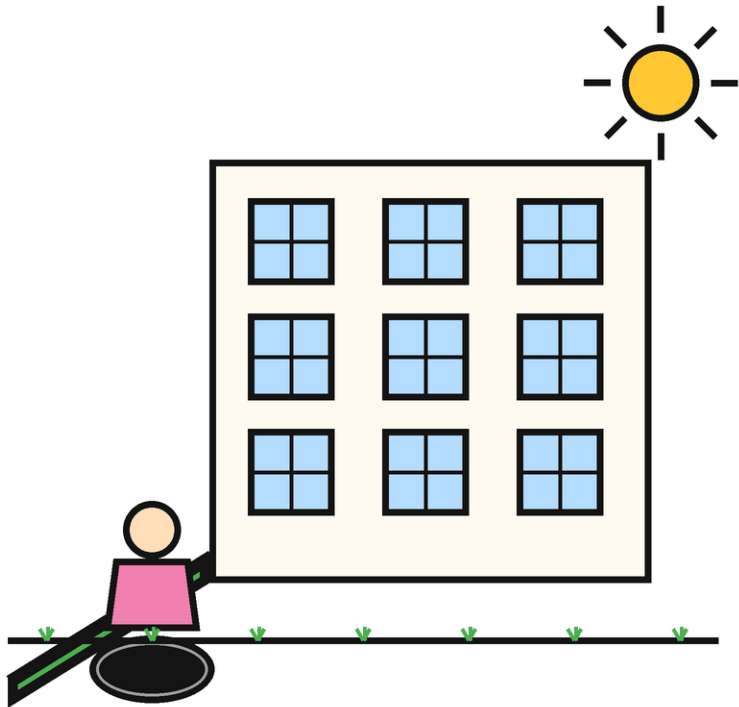
Section 43 — Consumer goods



Things sold in shops — like phones, TVs, and household goods — should be made so that persons with disabilities can use them.

★ USE THIS WHEN

A product you bought is not usable because of your disability and the maker did not provide an accessible version.



Section 44 — Mandatory observance of accessibility norms

No new building, transport, or service can get a permit unless it follows the accessibility rules.

★ USE THIS WHEN

A new building or service has been approved but does not meet the accessibility standards.



Section 45 — Time limit for making existing infrastructure and premises accessible and action for that purpose

Old buildings and services must be made accessible within five years. This is the law, not a request.

★ USE THIS WHEN

A public building or service is still inaccessible long after the law required it to be fixed.

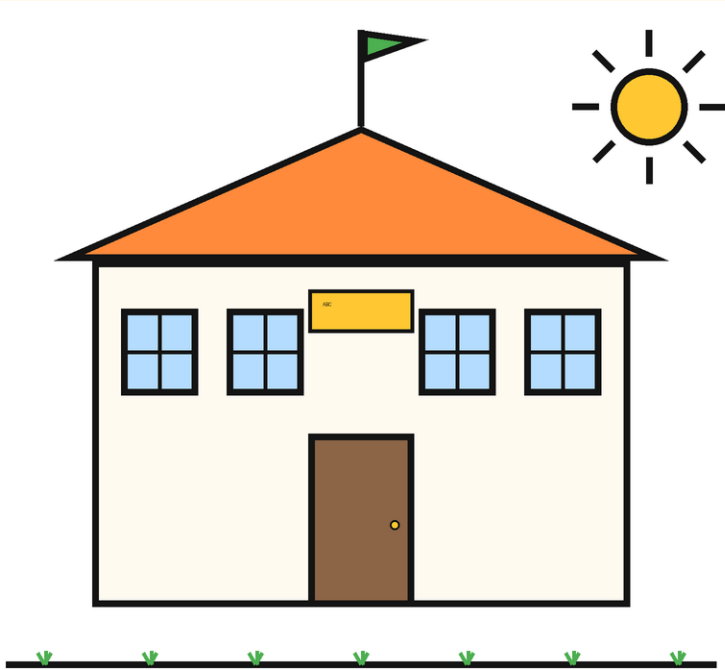


Section 46 — Time limit for accessibility by service providers

Service providers — like banks, hospitals, and shops — must make their services accessible within a fixed time set by the government.

★ USE THIS WHEN

A service provider has not made its service accessible within the time the government set.

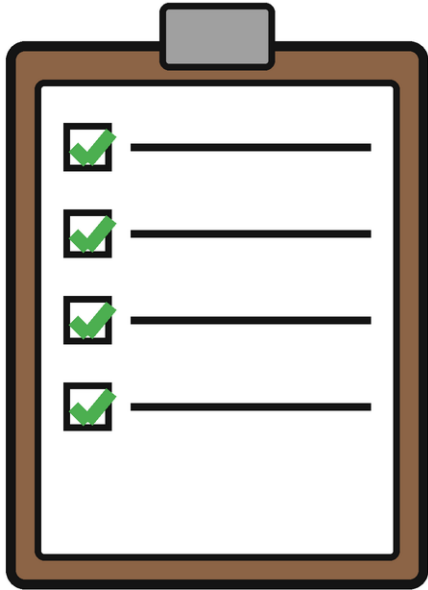


Section 47 — Human resource development

The government must train enough teachers, doctors, and other staff to support persons with disabilities.

★ USE THIS WHEN

There are no trained special educators, sign language interpreters, or rehab workers in your area.



Section 48 — Social audit

The government must check, at least every five years, if the schemes for persons with disabilities are working — and persons with disabilities themselves should be part of that check.

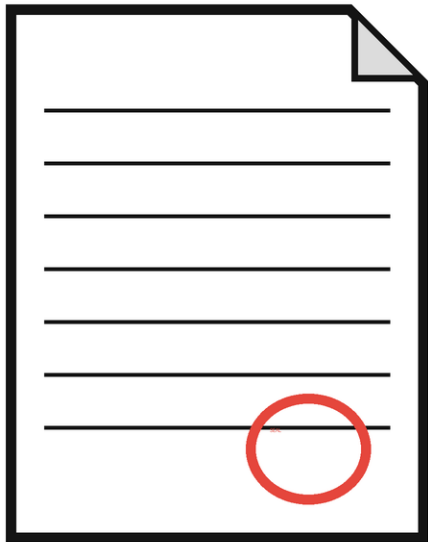
★ USE THIS WHEN

A scheme is not being audited, or persons with disabilities were not part of the audit.

CHAPTER IX

Registration of Disability Institutions

Rules for organisations that work with persons with disabilities

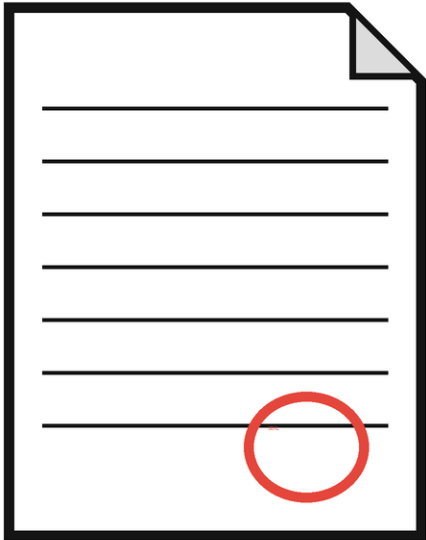


Section 49 — Competent authority

The government must name the office that handles registration of organisations working with persons with disabilities.

★ USE THIS WHEN

(For reference. This sets up the registration system for disability organisations.)

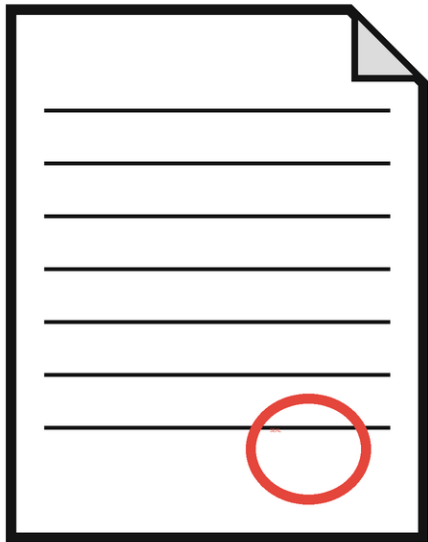


Section 50 — Registration

Any institution that wants to work with persons with disabilities must be registered. Without registration, they cannot legally provide services.

★ USE THIS WHEN

An institution is offering disability services without being registered.



Section 51 — Application and grant of certificate of registration

An institution must apply for a registration certificate. The competent authority gives the certificate after checking that the rules are met.

★ USE THIS WHEN

Your application for a registration certificate is taking too long, or was unfairly refused.

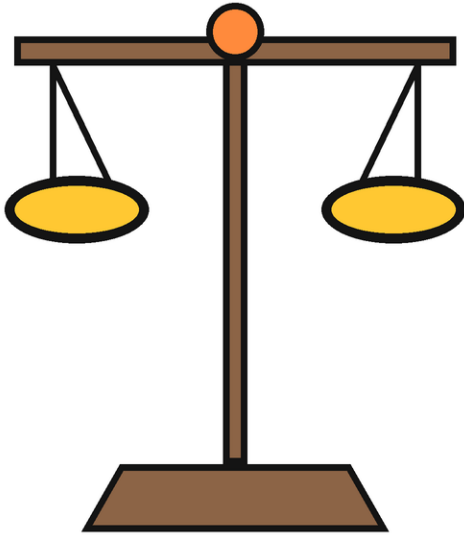


Section 52 — Revocation of registration

If a registered institution breaks the rules or harms persons with disabilities, its registration can be cancelled.

★ USE THIS WHEN

A registered institution is treating persons with disabilities badly. You can ask the authority to cancel its registration.

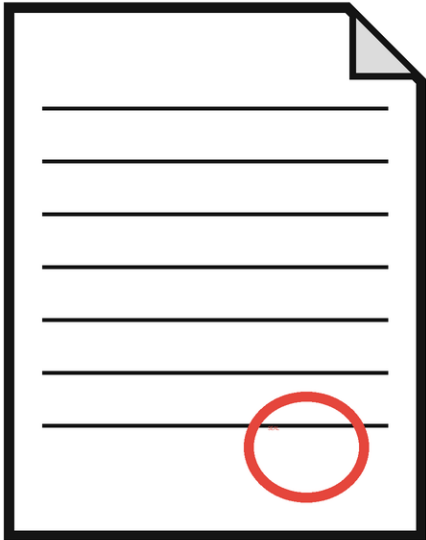


Section 53 — Appeal

If your registration is refused or cancelled, you have the right to appeal to a higher authority.

★ USE THIS WHEN

Your institution's registration was refused or cancelled and you want to challenge that decision.

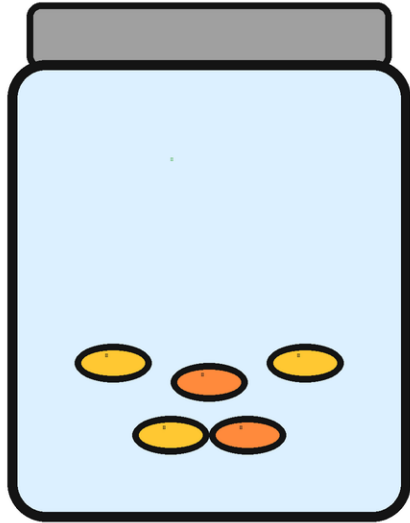


Section 54 — Act not to apply to institutions established or maintained by Central or State Government

Government-run institutions for persons with disabilities do not need to register under this chapter — different rules apply to them.

★ USE THIS WHEN

(For reference. Government institutions are exempt from this registration requirement.)



Section 55 — Assistance to registered institutions

The government can give grants and other help to registered organisations that serve persons with disabilities.

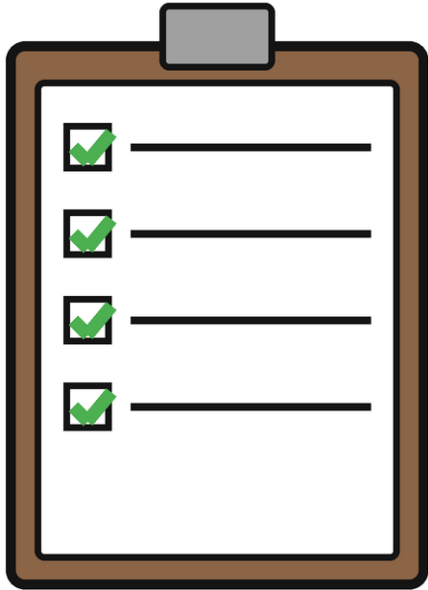
★ USE THIS WHEN

(For reference. This section is the basis for funding disability organisations.)

CHAPTER X

Certification of Specified Disabilities

How to assess and certify a disability

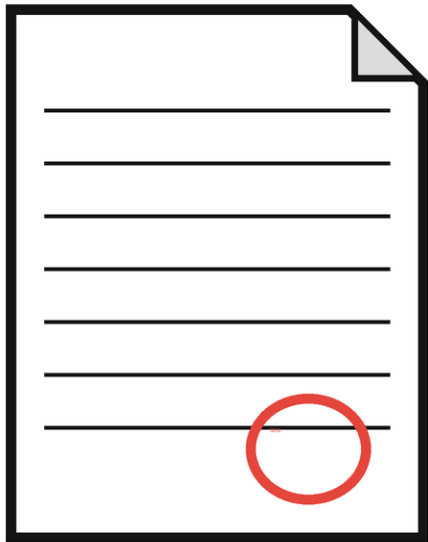


Section 56 — Guidelines for assessment of specified disabilities

The government must publish clear guidelines on how to assess each of the 21 specified disabilities.

★ USE THIS WHEN

(For reference. The assessment guidelines are issued by the central government.)

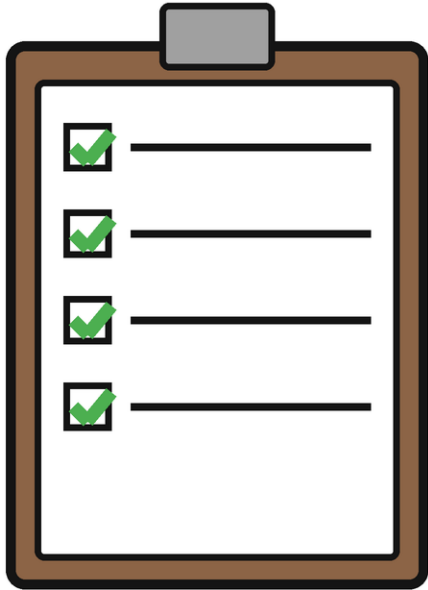


Section 57 — Designation of certifying authorities

The government must name the doctors and offices that can issue a disability certificate.

★ USE THIS WHEN

(For reference. This sets up the disability certification system.)

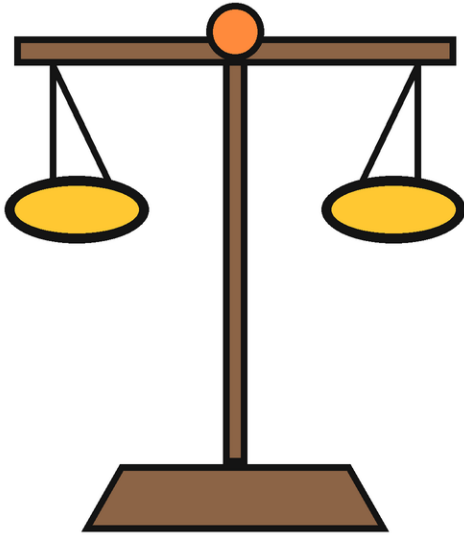


Section 58 — Procedure for certification

There must be a clear, fair process to get a disability certificate. The certificate is valid all over India.

★ USE THIS WHEN

A doctor or office is making the certificate process hard, slow, or unclear.



Section 59 — Appeal against a decision of certifying authority

If you are refused a disability certificate or get the wrong one, you can appeal.

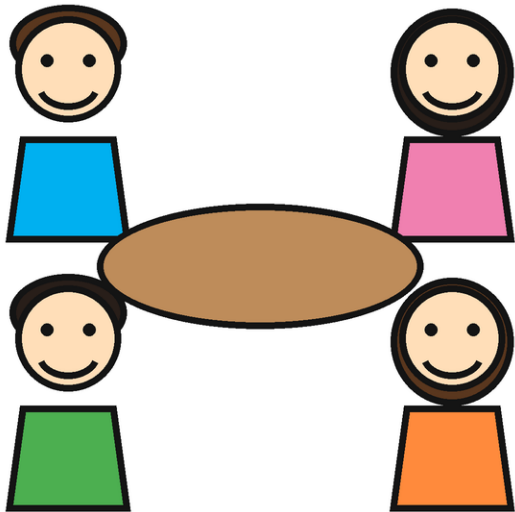
★ USE THIS WHEN

Your application for a disability certificate was refused, or the percentage was wrong.

CHAPTER XI

Advisory Boards on Disability

Central, state, and district advisory bodies

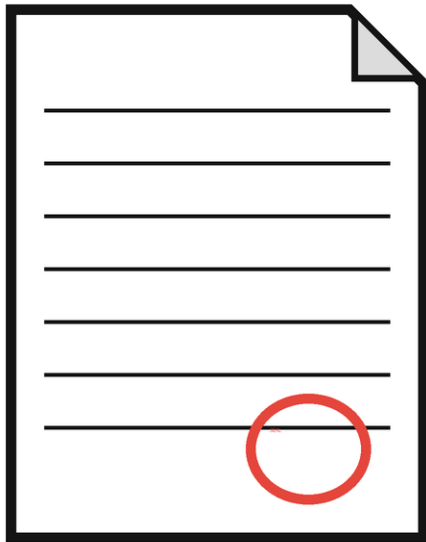


Section 60 — Constitution of Central Advisory Board on Disability

The central government must set up a Central Advisory Board on Disability to advise on disability matters.

★ USE THIS WHEN

(For reference. This sets up the national disability advisory body.)

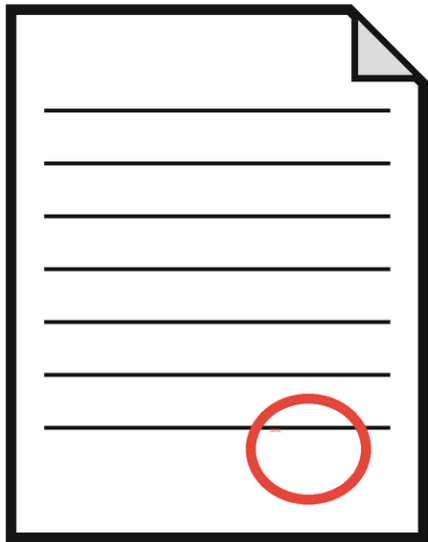


Section 61 — Terms and conditions of service of members

The rules say how Central Advisory Board members are paid and how long they serve.

★ USE THIS WHEN

(For reference. Administrative rule for Central Advisory Board members.)

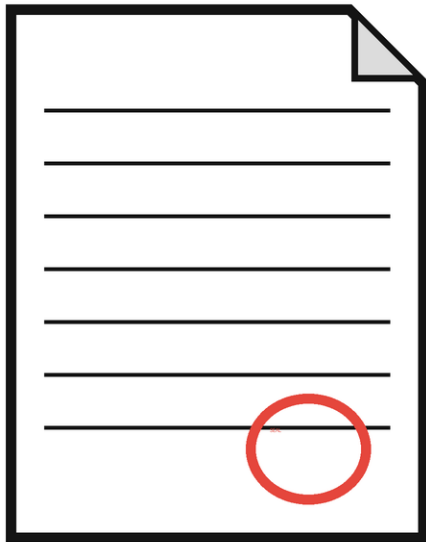


Section 62 — Disqualifications

Some people cannot be members of the Central Advisory Board — for example, people convicted of serious crimes.

★ USE THIS WHEN

(For reference. Lists who cannot be a Central Advisory Board member.)



Section 63 — Vacation of seats by Members

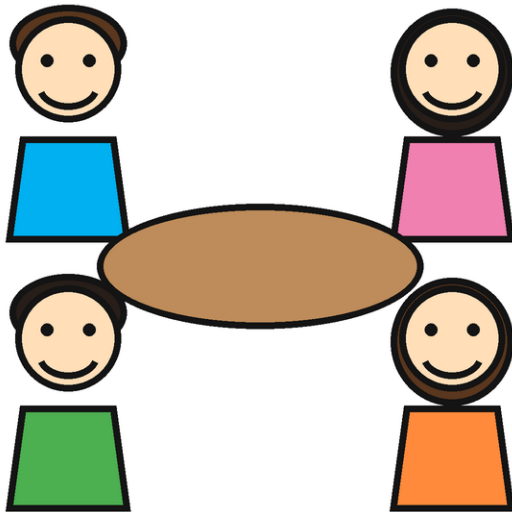
If a Central Advisory Board member misses too many meetings or breaks the rules, they lose their seat.

★ USE THIS WHEN

(For reference. Administrative rule for Central Advisory Board.)

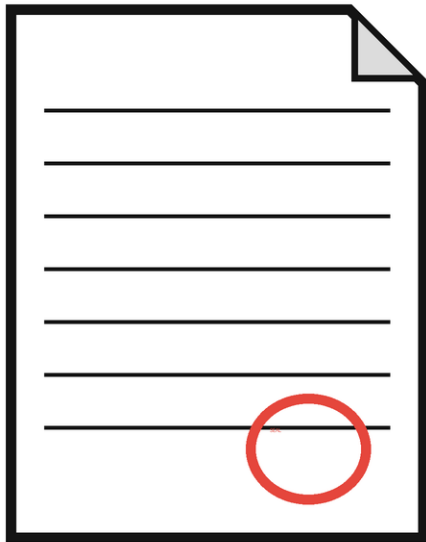
Section 64 — Meetings of the Central Advisory Board on disability

The Central Advisory Board must meet at least once every six months.



★ USE THIS WHEN

(For reference. The Central Advisory Board has not met in over six months.)

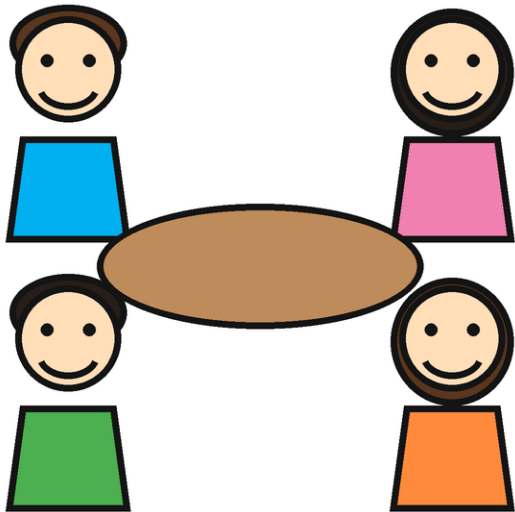


Section 65 — Functions of Central Advisory Board on disability

The Central Advisory Board advises the central government on disability rules, schemes, and reports.

★ USE THIS WHEN

(For reference. Lists what the Central Advisory Board does.)

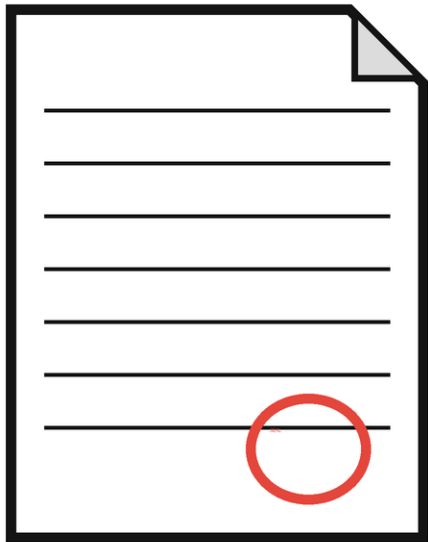


Section 66 — State Advisory Board on disability

Every state must set up its own State Advisory Board on Disability.

★ USE THIS WHEN

Your state does not have a State Advisory Board on Disability.

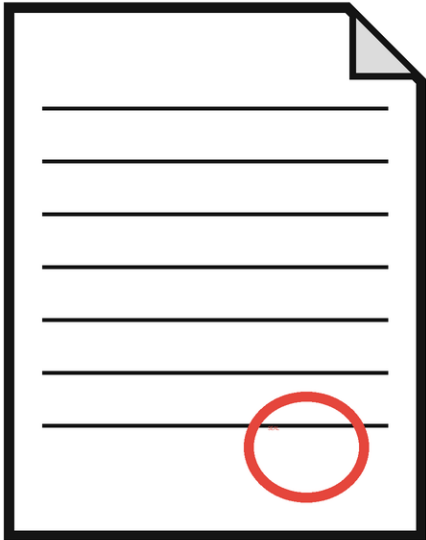


Section 67 — Terms and conditions of service of Members

Rules for State Advisory Board members — pay, term, and conditions.

★ USE THIS WHEN

(For reference. Administrative rule for State Advisory Board members.)

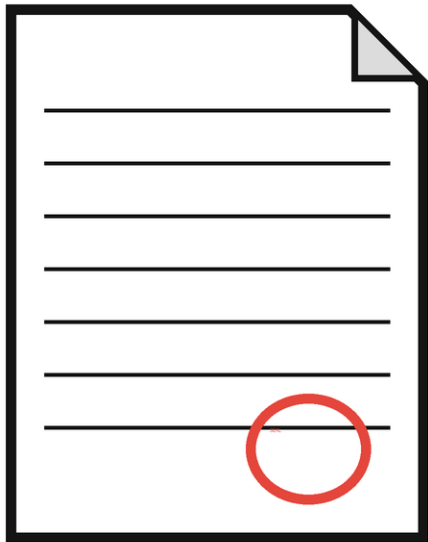


Section 68 — Disqualification

Same kind of rules as the Central Board: who cannot be a State Advisory Board member.

★ USE THIS WHEN

(For reference. Administrative rule for State Advisory Board.)



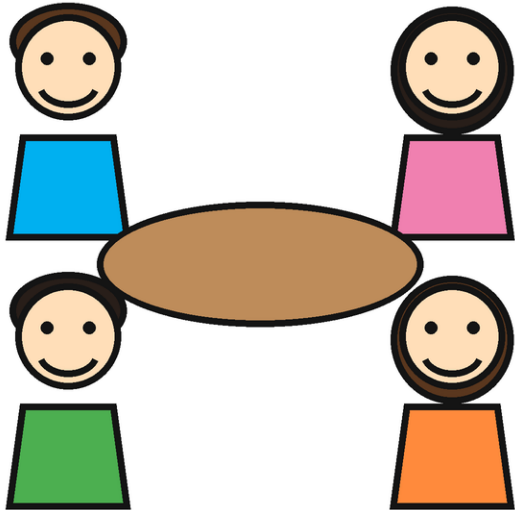
Section 69 — Vacation of seats

When a State Advisory Board member loses their seat — missed meetings, broken rules, etc.

★ USE THIS WHEN

(For reference. Administrative rule for State Advisory Board.)

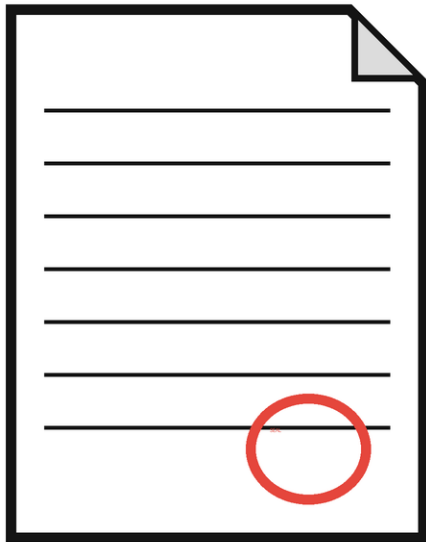
Section 70 — Meetings of State Advisory Board on disability



The State Advisory Board must meet at least once every six months.

★ USE THIS WHEN

Your State Advisory Board has not met in over six months.

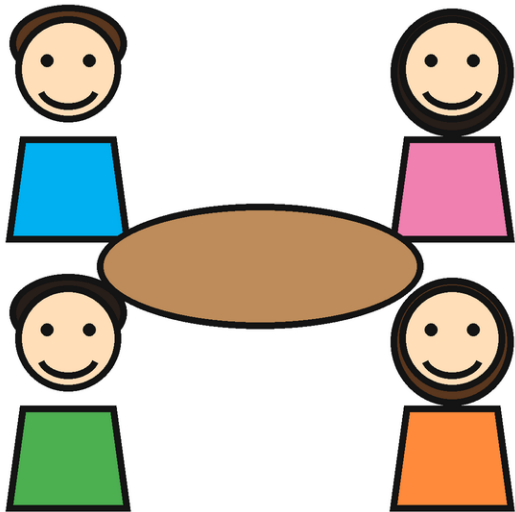


Section 71 — Functions of State Advisory Board on disability

The State Advisory Board advises the state government on disability rules, schemes, and reports.

★ USE THIS WHEN

(For reference. Lists what the State Advisory Board does.)

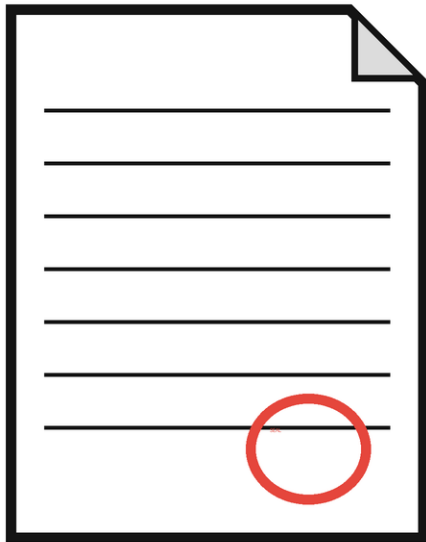


Section 72 — District-level Committee on disability

Every district must have a committee that handles disability matters at the district level.

★ USE THIS WHEN

Your district has no disability committee, or the committee is not working.



Section 73 — Vacancies not to invalidate proceedings

Even if some seats on the Boards or committees are empty, their decisions are still valid.

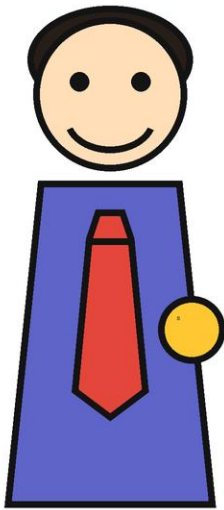
★ USE THIS WHEN

(For reference. Administrative rule.)

CHAPTER XII

Chief Commissioner and State Commissioners

The offices that handle your complaints

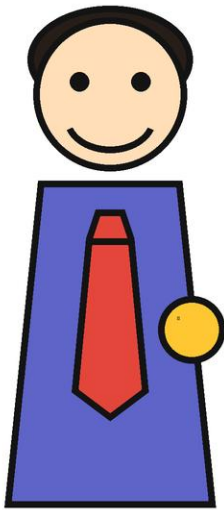


Section 74 — Appointment of Chief Commissioner and Commissioners

The central government appoints a Chief Commissioner for Persons with Disabilities and two Commissioners under the Chief Commissioner.

★ USE THIS WHEN

(For reference. This sets up the national disability complaints office.)

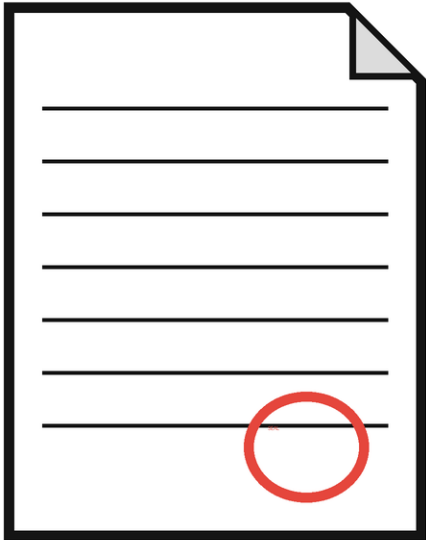


Section 75 — Functions of Chief Commissioner

The Chief Commissioner watches over how the Act is being followed across India and takes action when rights are broken.

★ USE THIS WHEN

(For reference. The Chief Commissioner is who you escalate to after the State Commissioner.)

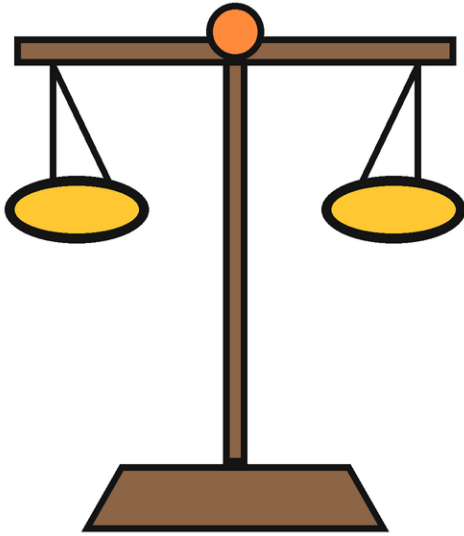


Section 76 — Action of appropriate authorities on recommendation of Chief Commissioner

When the Chief Commissioner makes a recommendation, the government office must act on it within a fixed time and report back.

★ USE THIS WHEN

The Chief Commissioner gave a recommendation and the office did not act on it.

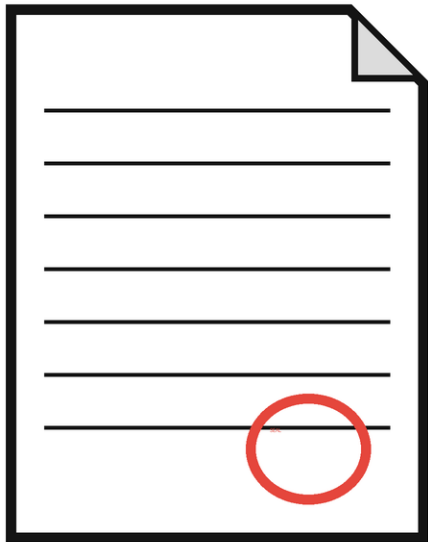


Section 77 — Powers of Chief Commissioner

The Chief Commissioner can call witnesses, ask for documents, and act like a civil court when looking into a complaint.

★ USE THIS WHEN

You filed a complaint with the Chief Commissioner and they have not used their powers.

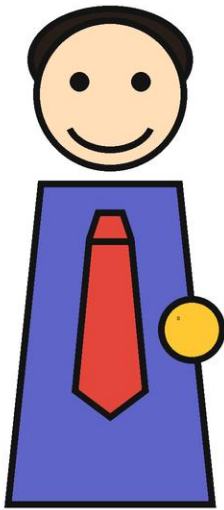


Section 78 — Annual and special reports by Chief Commissioner

The Chief Commissioner must publish a yearly report.
The report goes to Parliament.

★ USE THIS WHEN

The Chief Commissioner has not published a yearly report.

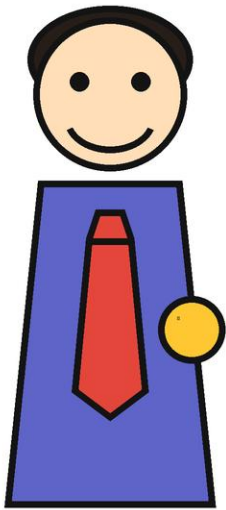


Section 79 — Appointment of State Commissioner in States

Every state must appoint a State Commissioner for Persons with Disabilities.

★ USE THIS WHEN

Your state does not have a State Commissioner for Persons with Disabilities.

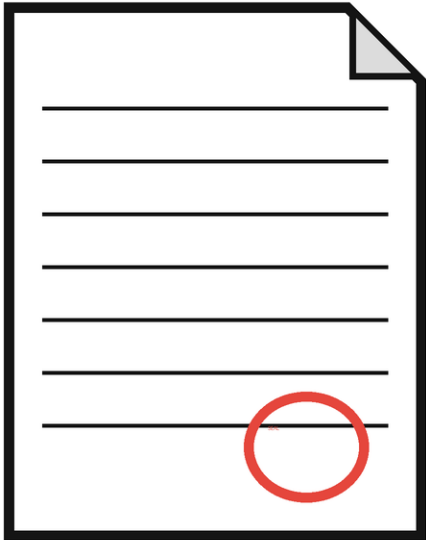


Section 80 — Functions of State Commissioner

The State Commissioner handles complaints in the state and watches over the Act in the state.

★ USE THIS WHEN

Use the State Commissioner as your first stop for complaints inside your state.

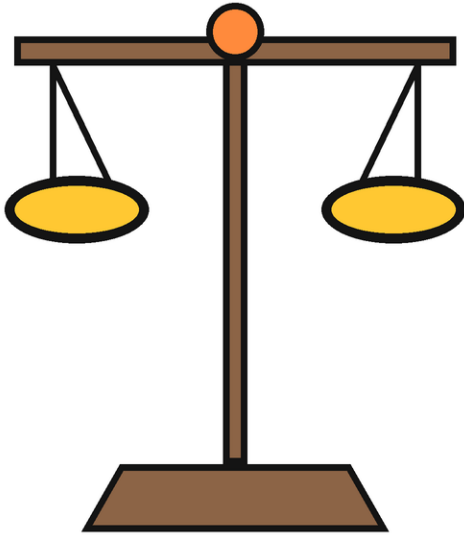


Section 81 — Action by appropriate authorities on recommendation of State Commissioner

When the State Commissioner makes a recommendation, the office must act on it and report back within a fixed time.

★ USE THIS WHEN

The State Commissioner gave a recommendation and the office did not act on it.

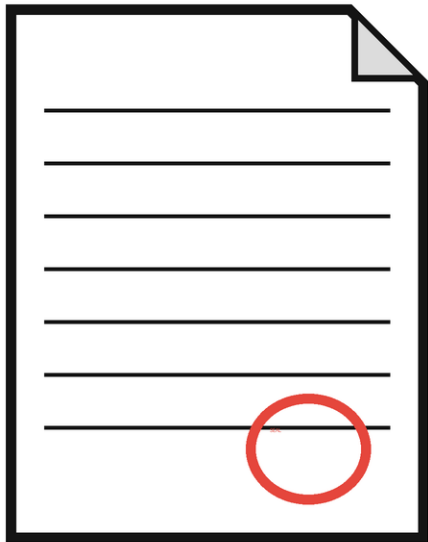


Section 82 — Powers of State Commissioner

The State Commissioner can call witnesses, ask for documents, and act like a civil court when looking into a complaint.

★ USE THIS WHEN

You filed a complaint and the State Commissioner has not used their powers.



Section 83 — Annual and special reports by State Commissioner

The State Commissioner must publish a yearly report. The report goes to the state government.

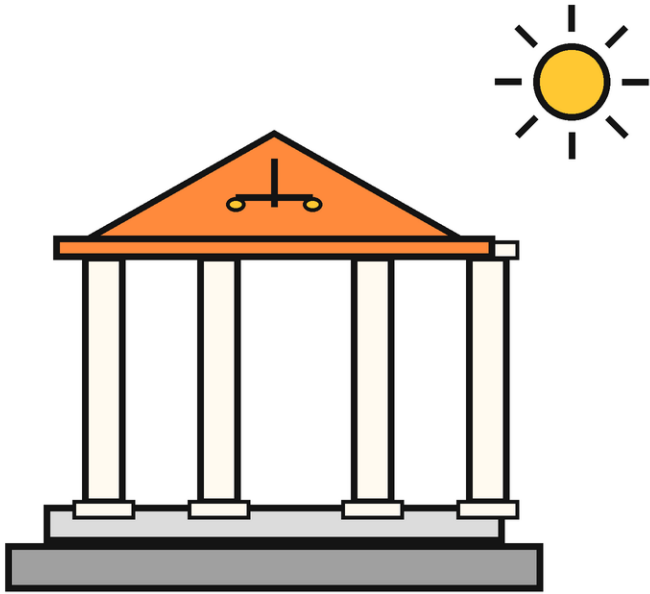
★ USE THIS WHEN

The State Commissioner in your state has not published a yearly report.

CHAPTER XIII

Special Court

Where serious cases under this Act are heard

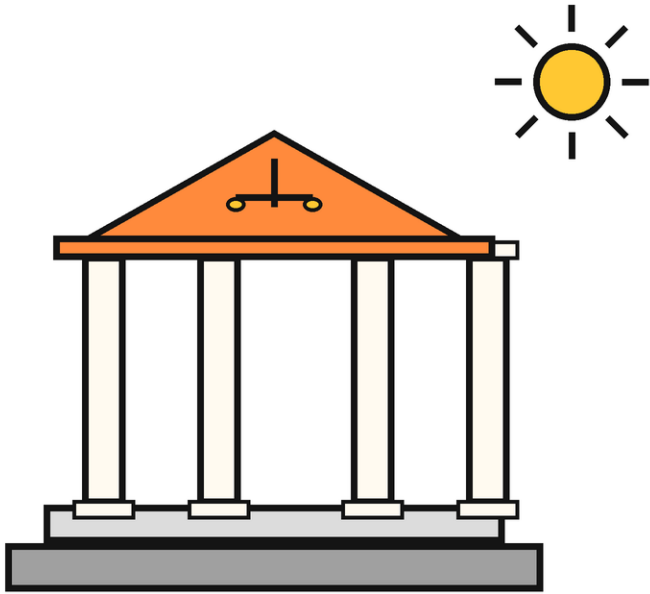


Section 84 — Special Court

Each state must have a Special Court to handle serious offences against persons with disabilities under this Act.

★ USE THIS WHEN

A serious case under this Act is not being heard in a Special Court.



Section 85 — Special Public Prosecutor

Each Special Court must have a Special Public Prosecutor to argue the case for the victim.

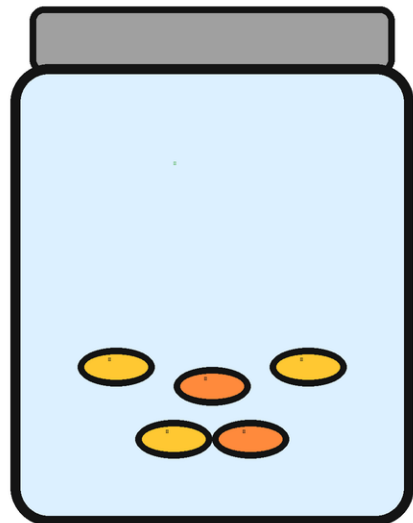
★ USE THIS WHEN

A case is being heard in the Special Court without a Special Public Prosecutor.

CHAPTER XIV

National Fund for Persons with Disabilities

The national pot of money that pays for support



Section 86 — National Fund for persons with disabilities

There is a National Fund for Persons with Disabilities. The Fund pays for schemes, support, and grants.

★ USE THIS WHEN

(For reference. The Fund pays for many disability programmes.)



Section 87 — Accounts and audit

The National Fund must keep clear accounts. The accounts must be audited every year.

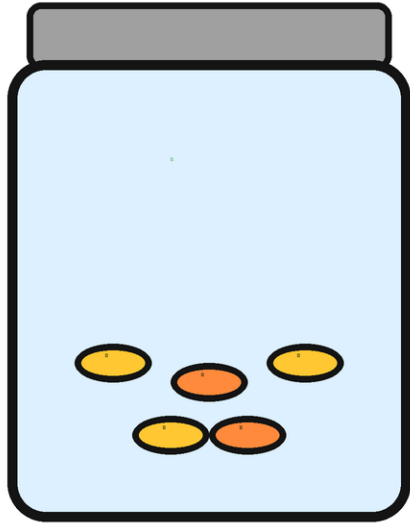
★ USE THIS WHEN

(For reference. Audit rule for the National Fund.)

CHAPTER XV

State Fund for Persons with Disabilities

Each state's own disability fund



Section 88 — State Fund for persons with disabilities

Every state must set up a State Fund for Persons with Disabilities, like the National Fund.

★ USE THIS WHEN

Your state has no State Fund, or the State Fund is not being used for persons with disabilities.

CHAPTER XVI

Offences and Penalties

If someone breaks these rules



Section 89 — Punishment for contravention of provisions of Act or rules or regulations made thereunder

If anyone breaks the rules of this Act, they can be fined. The first time: up to Rs 10,000. The next time: Rs 50,000 to Rs 5 lakh.

★ USE THIS WHEN

Someone or some office is breaking the rules of this Act and you want them to be punished.



Section 90 — Offences by companies

If a company breaks the rules of this Act, the people running the company can also be punished.

★ USE THIS WHEN

A company has broken the rules and you want the managers to be held responsible too.



Section 91 — Punishment for fraudulently availing any benefit meant for persons with benchmark disabilities

If a person fakes a disability to get benefits meant for persons with benchmark disabilities, they can be jailed for up to 2 years and fined up to Rs 1 lakh.

★ USE THIS WHEN

Someone is faking a disability certificate to get a job, seat, or benefit reserved for persons with disabilities.



Section 92 — Punishment for offences of atrocities

If someone insults you, hurts you, or humiliates you because of your disability, they can go to jail for 6 months to 5 years.

★ USE THIS WHEN

Someone publicly insults, beats, denies food, or sexually abuses a person with a disability because of their disability.

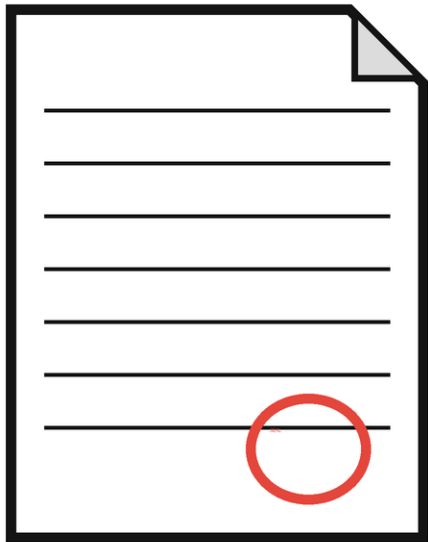


Section 93 — Punishment for failure to furnish information

If anyone refuses to give information that the Chief Commissioner or State Commissioner asks for, they can be fined.

★ USE THIS WHEN

An office refused to send information to the Chief Commissioner or State Commissioner.

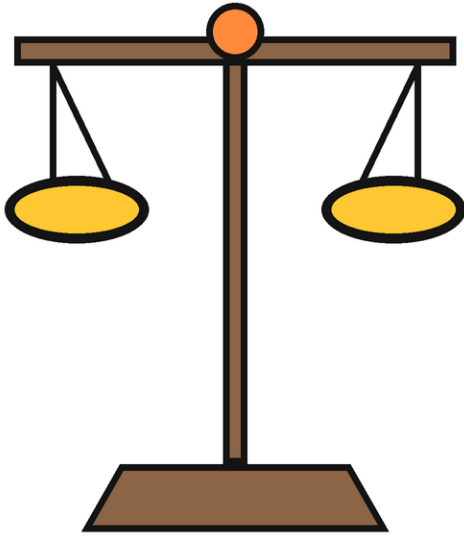


Section 94 — Previous sanction of appropriate Government

Some cases under this Act need permission from the government before they can be filed in court.

★ USE THIS WHEN

(For reference. Procedural rule for filing certain cases.)



Section 95 — Alternative punishments

The court can give other punishments — like community service or training — instead of fine or jail in some cases.

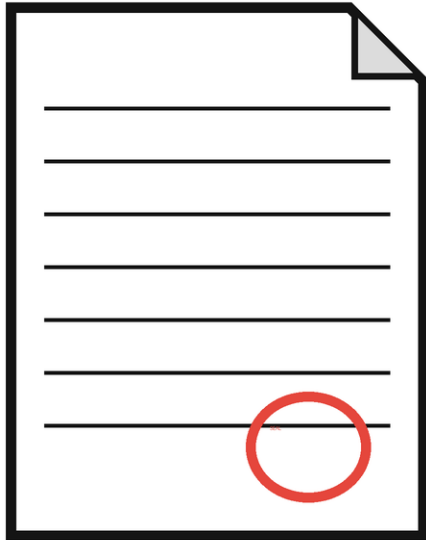
★ USE THIS WHEN

(For reference. Court has flexibility on punishment in some cases.)

CHAPTER XVII

Miscellaneous

The closing rules of the Act

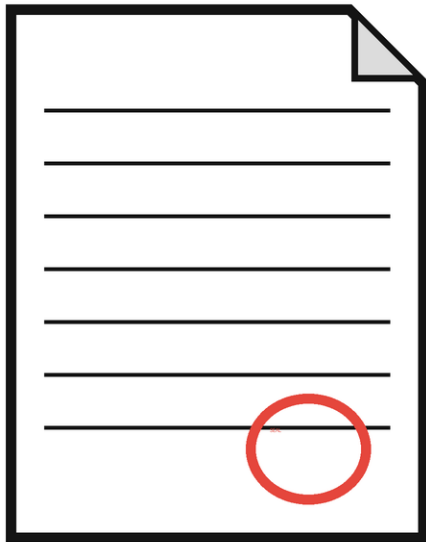


Section 96 — Application of other laws not barred

This Act does not stop you from using other laws too.
You can use this Act and other laws together.

★ USE THIS WHEN

(For reference. You can use multiple legal protections at once.)

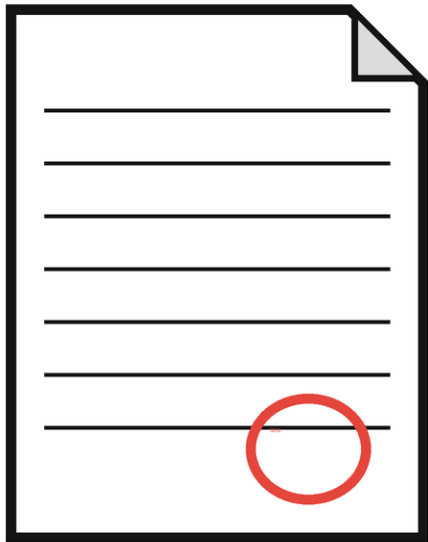


Section 97 — Protection of action taken in good faith

Government officers and others cannot be sued for actions they take honestly under this Act.

★ USE THIS WHEN

(For reference. Protects officers acting in good faith.)

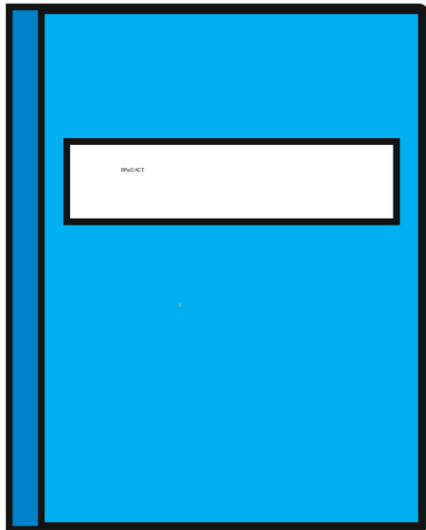


Section 98 — Power to remove difficulties

If something in this Act is unclear or hard to do, the central government can issue an order to fix it within three years of the Act starting.

★ USE THIS WHEN

(For reference. Allows the central government to issue clarifications.)

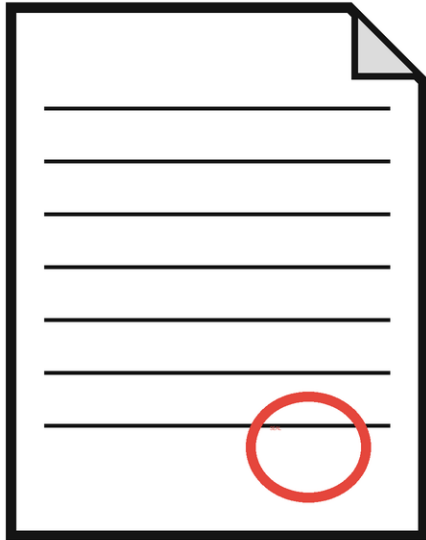


Section 99 — Power to amend Schedule

The central government can change the list of 21 specified disabilities — add, remove, or change them.

★ USE THIS WHEN

(For reference. The list of disabilities can be updated by the central government.)

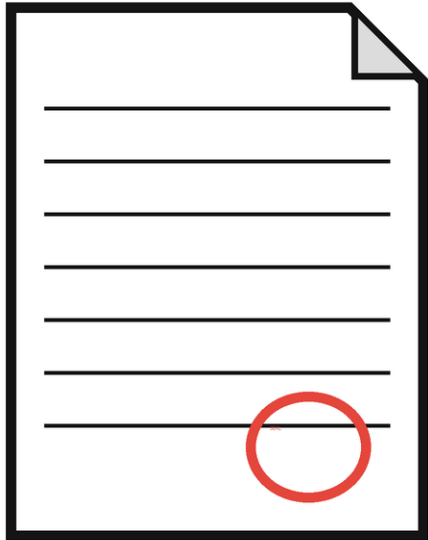


Section 100 — Power of Central Government to make rules

The central government can make rules to put this Act into action.

★ USE THIS WHEN

(For reference. Many parts of the Act work through rules made under Section 100.)

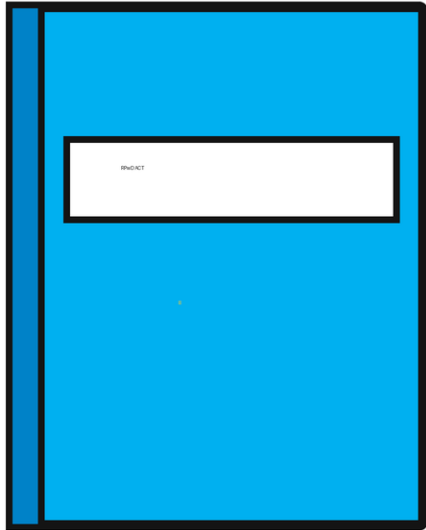


Section 101 — Power of State Government to make rules

Each state government can make its own rules to put this Act into action in the state.

★ USE THIS WHEN

(For reference. State governments make their own rules under Section 101.)



Section 102 — Repeal and savings

This Act replaces the older 1995 Persons with Disabilities Act, but actions already taken under the old Act are still valid.

★ USE THIS WHEN

(For reference. The 1995 PWD Act is repealed and replaced by this 2016 Act.)

How to file a complaint

Five steps to raise a complaint under the RPwD Act:

1

Write down what happened.

Date, place, names if you know them. Two or three lines is fine.

2

Find the right Section number.

Use this guide to pick the Section that fits your problem. Write it on your complaint.

3

Send your complaint.

Send it to the State Commissioner for Persons with Disabilities in your state. By email or by post.

4

Keep proof.

Save a copy. Get a receipt, an email reply, or a stamp showing they got your complaint.

5

Wait 60 days.

If nothing happens in 60 days, you can take it to the Chief Commissioner or to court.

Who can help you

If your rights are not respected, these offices can help:

State Commissioner for Persons with Disabilities

Every state in India has one. They handle complaints inside the state. Look up your state's office or ask the state social welfare department.

First place to go for most complaints.

Chief Commissioner for Persons with Disabilities

A national office for cases that go beyond one state, or when the State Commissioner has not helped within 60 days.

Office of the Chief Commissioner, New Delhi.

National Human Rights Commission

For very serious cases — cruelty, abuse, denial of basic rights.

Especially under Sections 6, 7, and 92.

Disabled People's Organisations

Local groups led by persons with disabilities. They can help you write your complaint and stand with you.

Vidyasagar in Chennai is one such organisation.

Remember: your rights in one page

	You are equal.	No one can treat you badly.	<i>Section 3</i>
	You can live with your family.	Not in an institution against your will.	<i>Section 5</i>
	No one can hurt or use you.	You can call the police.	<i>Sections 6, 7</i>
	You can go to school.	Schools must make space for you.	<i>Sections 16, 17</i>
	You can work.	4 in 100 government jobs are reserved.	<i>Sections 20, 34</i>
	You can have healthcare and a pension.	Free, close to home.	<i>Sections 24, 25</i>
	Buildings and information must work for you.	Ramps. Lifts. Easy formats.	<i>Sections 40, 42</i>
	If anyone breaks these rules,	they can be fined or jailed.	<i>Sections 89, 92</i>

Always write the Section number when you raise a complaint. That is what makes it powerful.

"Nothing about us without us"

Capacity, not dependency.

RPwD Act 2016 — Easy Read Guide

All 102 Sections · April 2026

Prepared for the Document Equity Initiative · EquitableDocs



vidyasagar.co.in

Section titles verified against the official Ministry of Law and Justice text. Not legal advice.